

RESOLUTION

WHEREAS, the Board of Alderman of the Town of Decatur, Mississippi has been given the duty and responsibility through the Constitution and Laws of the State of Mississippi of maintaining and protecting the public roads and highways, and;

WHEREAS, the Board finds that from time to time certain uses of the public road and highways as set forth below cause excessive and unnecessary wear and tear and damage, and;

WHEREAS, the Board now finds that it is necessary that an Ordinance be enacted providing a comprehensive regulation of heavy truck traffic on municipal streets;

NOW, THEREFORE, be it ordained by this Board of Alderman that the following Ordinance, entitled "An Ordinance for the Protection of the Public Roads and Highways" be enacted, to be in full effect after publication.

ORDINANCE NO. A 41

TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE FOR THE PROTECTION OF THE PUBLIC ROADS AND HIGHWAYS

SECTION 1. RULES OF CONSTRUCTION. Any word not defined herein shall be construed as defined in accordance with its standard definition as provided by MCA 1972, Title 63.

SECTION 2. DEFINITIONS. The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Semitrailer means every vehicle of the trailer type so designed and used in conjunction with a truck tractor.

Tractor as used herein, means every vehicle designed, constructed or used for drawing other vehicles.

Trailer as used herein, means every vehicle without motive power, designed to carry property or passengers wholly on its structure and which is drawn by a motor vehicle.

Truck tractor as used herein, means every motor vehicle designed and used for drawing other vehicles and so constructed as to carry a load other than a part of the weight of the vehicle.

SECTION 3. VEHICLES SUBJECT TO REGULATIONS AND PENALTIES.

- (a) This article shall operate to regulate and apply to any person or persons operating any truck, truck tractor, semi-truck, semi-trailer, tractor-trailer combination, or truck and trailer combination, or other vehicle having a gross vehicle or gross combination rating of 11,794

kilograms or more (26,001 pounds or more), including but not limited to, any vehicle which is classified as a "commercial motor vehicle" by the Mississippi Department of Transportation or where the operation of which requires the operator to maintain a commercial driver's license (CDL) pursuant to MCA 1972, § 63-1-202 et seq.; or any out-of-state vehicle that is required to maintain the licensing state or country's equivalent of a commercial driver's license and which is being operated within the State of Mississippi pursuant to MCA 1972, § 63-1-215 or where such vehicle.

- (b) Sufficient evidence for a stop under this article shall exist where the suspected vehicle appears to the officer to be of the type of vehicle commonly recognized as one of those set forth in the preceding subparagraph; and the officer conducting such a stop shall have the authority to demand for inspection the vehicle manifest or bill of lading as required by MCA 1972, § 27-19-91; or to demand for inspection the vehicle registration, IFTA credentials, CDL, cab card, or any other documents pertaining to operation or load being hauled.
- (c) Operators of commercial vehicles should at all times have in their possession valid license tag and registration (cab card) that indicates the owner, VIN number, make and model of the vehicle, registered weight and class, in accordance with the MDOT commercial motor vehicle enforcement manual.
- (d) Sufficient evidence for a citation and conviction shall exist where any of the documentation set forth in subsection (b) or (c) of this section indicates the vehicle and/or load is registered within the weight or classes set forth in subsection (a) of this subsection.
- (e) Any operator of a commercial vehicle who shall refuse or fail to produce at least one form of documentation, where the operator is required by state law to have such documentation in his possession, indicating weight or class under subsection (b) or (c) of this section shall be issued a citation for failure to present proof thereof.

SECTION 4. DESIGNATED TRUCK ROUTES. The following roadways in the Town of Decatur are, to the exclusion of all other roadways, hereby designated as truck routes classified for use by truck traffic:

- (1) Highway 15 North and South from the southern boundary of the Town of Decatur to the northern boundary of the Town of Decatur.
- (2) Highway 503 North and South from the municipal limits of the Town of Decatur to the intersection of Highway 503 with Highway 15.
- (3) Broad Street from the intersection of Broad Street with Highway 15 to the municipal limits of the Town of Decatur.
- (4) 7th Street from Highway 15 to the intersection of South 5th Avenue. South 5th Avenue to Turkey Creek Road and Turkey Creek Road to the municipal limits of the Town of Decatur.
- (5) Upon application to the director of public works a special route permit may be issued to allow the hauling of heavy loads from within the Town of Decatur to other locations. Said permit shall designate the streets over which such loads may be hauled.

SECTION 5. PROHIBITION AGAINST TRAVEL ON ROADWAYS OTHER THAN DESIGNATED TRUCK ROUTES.

- (a) Except as expressly permitted under this article, no person shall operate any vehicle as described under Section 3 above.
- (b) Violation of this article shall constitute a misdemeanor offense and subject the offender to the penalties set forth herein.

SECTION 6. EXEMPTIONS. Truck route limitations prescribed in this article shall not apply to:

- (1) Officially sanctioned traffic, as follows:
 - a. Fire trucks or other emergency vehicles or vehicles on emergency business involved in the saving of life or property; or
 - b. Municipal and governmental owned vehicles operating in support of municipal or governmental purposes; or
 - c. Road repair, construction or maintenance vehicles owned and operated by a municipality or government or any contractor while involved in the repair, construction or maintenance of a road; or
 - d. The operation of any truck, or truck tractor and semi-trailer, or truck tractor and trailer combination, or truck and trailer combination which is classified as a commercial vehicle upon any officially established detour; or
 - e. Garbage service vehicles while involved in the provision of usual and contractual garbage and recycling services.
- (2) Leaving or returning to home or place of business:
 - a. Nothing herein contained shall be construed to prevent a vehicle otherwise restricted to a truck route from leaving or returning to the owner's storage and maintenance location in the city or operator's personal residence in the city provided the most direct route to and from a designated truck route is utilized.

SECTION 7. SIGNS. The city shall procure and have posted appropriate signs along the designated truck routes as required by the laws of the State of Mississippi.

SECTION 8. FINES AND PENAL TIES.

- (a) A citation shall be issued to the offender and the person shall be subject to a penalty of not less than \$250.00 on the first offense and not more than \$500.00 for each subsequent offense. In addition to the fine, the court may order such person to participate in up to 40 hours of court-approved community service activities.
- (b) Violators and their employers shall be liable for any damage resulting to prohibited roadways. The city shall issue an invoice to the offender reflecting such amount within 90 days following the issuance of citation for violation of this article.
- (c) Where a stopped commercial motor vehicle shall fail or refuse to produce at least one form of documentation indicating weight and class as set forth in section 3 (b) or (c) of this article, the operator shall be subject to a penalty of not less than \$1,000.00; however, if the cited operator shall produce such documentation prior to or at hearing on his citation

for failure to present proper documentation, the penalty shall be reduced to the amount set forth in subsection (a) of this section.

- (d) Defenses. It is a defense under this section if it is determined, after a hearing or trial, that the person was exercising rights protected by the federal or state Constitution. Any defense under this section must be asserted prior to any hearing or trial in the matter.

SECTION 9. MODIFIED WHEELS ON MUNICIPAL STREETS. It is unlawful to drive on any paved municipal public road any vehicle having cleats, tracks or spiked wheels other than under such circumstances as may be permitted by state statute.

SECTION 10. PUBLICATION. This Resolution shall take and be in force from and after the Resolution being published in the Newton County Appeal, a legal newspaper published within the County for three (3) consecutive weeks and shall be effective on the date of the last publication thereof.

SO ORDAINED AND RESOLVED, this the 2nd day of July, 2019.